

MAINS MASTER PROGRAM (MMP) 2024
POLITY – 2
PARLIAMENT AND STATE LEGISLATURE

Parliament and State Legislatures—Structure, Functioning, Conduct of Business, Powers & Privileges and Issues Arising out of these.

Rajya Sabha - Relevance

➤ **Genesis of Rajya Sabha**

- Gol Act, 1919
- Post-independence – 1952

➤ **Constituent Assembly – Debates**

- Favour of Rajya Sabha (Relevance)
 - ✓ enhances quality of debates & discussion (Accountability)
 - ✓ Represent federal political system
 - ✓ Ensure continuity in functioning
 - ✓ Preoccupation of Lok Sabha members in the constituencies
- **Against Rajya sabha**
 - ✓ Delay in law making
 - ✓ Back door entry for legislators
 - ✓ No equal powers

➤ **Instances of Rajya Sabha – Assertiveness**

- Joint Sittings – 3 times
- 64th & 65th constitutional amendment bill – related to local bodies
- Instances of questions, motions in the 16th & 17th Lok sabha

➤ **Limitations of Rajya Sabha**

- Money bills & certain financial bills
- No-confidence motion
- Demand for grants
- Estimates Committee

➤ **Special Powers**

- Art.312 [All India Services]
- Art. 249
- Approval of emergency u/a 352 & 356

➤ **Reforms / Way forward**

- Not to be **back door entry** for politicians but should reflect the **original intent** of the constituent assembly
- More financial powers to be entrusted [**Estimates committee**]
- Sincerity of nominated members [**E.g., Mr. Tendulkar 32 days, Actor Rekha – 18 days**]
- Need for **Domicile requirement** [Kuldip Nayar Case]
- Should function as a **deliberative but not disruptive** one [61% increase in the period 2015-2019]
- Parliamentary system is part of **basic structure**

Questions

1. The Rajya Sabha is not merely a house for second thought, rather it is a guardian of states interest, a watchdog of government and possesses power to improve upon legislation. Comment
2. The Function of the Rajya Sabha in strengthening the fundamentals of our parliamentary democracy becomes even more necessary today. Analyse the statement in the context of the prevailing political scenario in the country.

Presiding Officers

a) Speaker – Powers & functions, Impartiality & Neutrality, Implications for a democratic society.

➤ Constitutional Provisions

- Art. 93 – elected as soon as possible
- Simple majority
- Member from Lok Sabha
- Effective majority

➤ Powers & functions

- Final authority to decide **conduct of business & decorum**
- Final authority to **make & to interpret rules** in the house
- **No-confidence motion** introduction
- Exercise **powers to expunge** any part of parliamentary proceedings
- Certification of **money bills**
- Power to preside over **joint sittings**
- Power to disqualify on grounds of **Anti-defection law**

➤ Impartiality & Neutrality of the speaker.

- Casting Vote
- Salary charged on CFI
- Effective Majority for removal
- Constitutional post & not subject to anti-defection law for giving up party membership

➤ Implications in democracy

- Power to certify money bills
 - ✓ **Aadhar bill, Amendment to PMLA, 2002**
- Final authority to interpret rules & ensure discipline & decorum
 - ✓ Referral of bills to **standing committees** – **71% in 15th to 16% in 17th Lok Sabha.**
 - ✓ Suspension of MP's [**Mr. Adhir Ranjan Chowdhury**]
 - ✓ Suspension of around 100 MPs in the winter session
- **Expunging power of parliamentary proceedings**
 - ✓ Mr. OM Birla expunging speech of Mr. Gandhi
- Final authority to decide & conduct parliamentary proceedings

➤ Way Forward

- Speaker to resign from party [**Healthy convention in UK**]
- Supreme Court [Keisham Meghachandra Singh Vs The Hon. Speaker Manipur]
 - ✓ 3 months [Anti-defection]
 - ✓ Independent Tribunal
- "once a person is elected as speaker, he is expected to be above parties, above politics" [G V Mavlankar]
- "the symbol of nation freedom & liberty" [Pandit Nehru]

- “Speaker from a ruling party is like an umpire appointed by the batting side” [Arvind P Datar – Supreme Court, Advocate]

Questions

1. What are the implications in a parliamentary democracy if the speaker fails to function independently & impartially?
2. “The speaker has vast authority under the constitution & the rules of the house”. Comment.

Anti-Defection Law

➤ Historical Background

- **52nd** constitutional Amendment, 1985 [**Xth Schedule**]
- **1/3 split & 2/3rd** merger
- **91st** constitutional amendment, 2003 [**2/3rd** merger]

➤ What amounts to defection?

- Member of **legislature party voluntarily gives up membership** [Ravi S naik Case]
- Member of **legislature party votes contrary or abstains** from voting
- **Independent candidate** joins any party during the term
- **Nominated member** joins any party after **6 months**

➤ What is the consequence?

- **Disqualification by the presiding officer**

➤ Advantages of anti-defection law

- Strengthens the moral content of democracy
- Ensures political stability [Kihoto Hollohan Case]
- Prevents embarrassment to political party

➤ Disadvantages

- Weakens **intra-party** dissent
- **Partisan nature** of speaker [Defection in Manipur Legislature]
- **No time limit** to decide [3 months – Keisham Megachandra Singh case]
- Not effective as it could not prevent defections
- **Lack of definition** – Merger, political party etc.

➤ Important Judgements on anti-defection law

- **Kihoto Hollohan Case**
 - ✓ Presiding officer acts as a tribunal & subject to judicial review
 - ✓ No courts will interfere before the decision of presiding officer
- **Nabam Rebia case**
 - ✓ Speaker cannot decide disqualification pending motion for his /her removal
- **Keisham Meghachandra Singh**
 - ✓ 3 months to decide disqualification petition
- **K.M Singh Vs Speaker Manipur**
 - ✓ Powers to be vested in an independent tribunal

➤ Way forward [Recommendations]

- **Stronger & Impartial Law**
 - ✓ Definition of Merger [Maharashtra Defection]
 - ✓ Disqualification from contesting by-election & for certain number of years.
 - ✓ Restrict case of no-confidence motion [Dinesh Goswami Committee]
 - ✓ Independent Tribunal [Supreme Court of India]

- ✓ Speaker to resign from party [UK convention]

Question

1. What do you understand by anti-defection law? How can it be made stronger & more impartial? [15 Marks]
2. Though anti-defection law was brought with an intention of ensuring stability of the elected government it requires serious reforms. Do you agree? [10 Marks]

Leader of the opposition – Lok Sabha

- **Statutory Recognition** [Salary & allowances of leader of opposition in the Parliament Act, 1977]
 - Leader of the party having not less than 10% strength in Lok Sabha
 - Recognised by the speaker
 - Cabinet Minister rank
 - **‘Shadow Prime Minister with shadow Cabinet’**
- **Role & Functions**
 - **Face & voice** of opposition in the Lok Sabha
 - LoP is part of **key parliamentary committees** [Financial Committees]
 - Part of the various **selection Committees** [ED, CBI, CVC, CIC, CEC & EC's, NHRC Chief etc.]
 - Inform **failure of the government** with great sense of responsibility
 - LoP can **make intervention in speeches** without notice [Parliamentary tradition]
 - He can demand **presence of PM** on important debates on serious matters
 - PM can inform **major policy decision** to LoP [British parliamentary Convention]
 - LoP is the head of the **‘Shadow Cabinet’** who scrutinize the policies of the opposition & suggest alternative policy. [British Parliamentary Convention]
- **Way Forward**
 - Allocate more time to LoP [Parliamentary Proceedings]
 - PM to listen & take questions from LoP
 - **Westminster parliamentary system** can be followed

Questions

1. ‘The leader of opposition in the Lok Sabha has great political significance under the parliamentary system of governance in India’. Comment [10 Marks]
2. The Leader of opposition in the Lok Sabha is considered a ‘Shadow Prime Minister with a shadow cabinet’. Do you agree? Elaborate your viewpoints.

Parliamentary Privileges

- **Historical Context**
 - Westminster system
 - GoI, 1935
- **Rationality**
 - Special rights & immunities that will enable the parliamentarian in discharging their duties & responsibilities effectively & efficiently [Individually & Collectively]
- **Constitutional Provisions**
 - Article 105 & Article 194
 - ✓ Right to speech & vote in the house of the parliament [Not absolute – E.g., **Art. 121 & Rule 353 Lok Sabha** – advance notice in case of allegations]

- ✓ Right to publication [**Rule 380 & 261** allows the presiding officer to **expunge** certain contents]
- **Parliamentary conventions** [absence of codification]
 - Not to be **arrested 40 days before & after session** [Civil cases]
 - Parliament reserves right to receive information on arrest, conviction, detention & release of legislators.
 - Prior permission of the chair to arrest within the precincts of the house
 - Punish for the **breach of the privilege** [members & outsiders]
- **What amounts to breach of parliamentary privilege?**
 - Any individual or authority undermines the privilege of the members, or the house can be considered breach of parliamentary privilege.
- **Issues arising out of parliamentary privileges**
 - Non-codification **against idea of limited powers** [constitutionalism]
 - No **parliamentary sovereignty**
 - Violation of **Fundamental rights** [MSM Sharma case, 1959]
 - Misuse for vested interest [E.g., **expunging of reports**]
- **Arguments in favour of parliamentary privileges & non-codification**
 - Ensuring dignity of the house & members
 - Codification will lead to judicial scrutiny & delay
- **Way forward**
 - NCRWC **codify parliamentary privileges**
 - **Keshav Singh case, 1965** – parliamentary privileges are subject to right to life & liberty
 - **Sita Soren case, 2024** – taking bribe for voting or raising questions are not protected under the privilege. [Overruled JMM case, 1988]
 - **World scenario** – Australia codified, USA – no penal provisions.

Questions

1. What do you understand by parliamentary privileges? Is it time to reform the way the privileges exercised by the legislators? Argue with suitable reasons.
2. What do you understand by parliamentary privileges? Do you think can such privileges extend immunity to legislators accepting bribe for voting or raising questions in the parliament? Examine citing relevant judgements.

Parliamentary Committees

- **Structure of the Committees**
 - Standing & ad hoc committees
- **Standing Committees**
 - Financial Committees [PAC, Estimates & CoPU]
 - DRSC's
 - Enquiry Committees [Privilege & Ethics]
 - Scrutiny [Assurances & subordinate legislations]
 - Service [General Purpose, Library etc.]
- **Ad hoc committees**
 - Joint Parliamentary Committee [Bofors scam]
 - Select Committee [Surrogacy bill, 2019]
- **Departmentally Related Standing Committees [DRSC's]**

- **Functions of DRSC's**

- ✓ Scrutinize the Bills [Motor Vehicle Amd. Bill 2016, Surrogacy bill 2019]
- ✓ Examine the demand for grants
- ✓ Scrutinize the implementation of various schemes & policies [NHM, Smart City Mission]

- **Advantages of DRSC's**

- ✓ Smaller size helps better scrutiny
- ✓ Input from experts
- ✓ Consensus building forum

- **Problems/ Issues**

- ✓ DRSC's bypassed [2019 LS -> 25% bills referred; GST bill not referred]
- ✓ Recommendations Not binding [54% accepted last 5 years]
- ✓ No standing Research Support
- ✓ No Transparency in functioning

- **Reforms**

- ✓ Referral of bills compulsory & automatic [UK Convention]
- ✓ Standing Research support [NCRWC, 2002]
- ✓ Fixed timeline for committee's report
- ✓ Transparency in functioning
- ✓ Direct interaction with people to take inputs [Mr. Birla]

➤ **Public Accounts Committee**

- **Functions** – Scrutinise the audit report of the CAG

- ✓ Appropriated money has been spent as approved by parliament & for the same purpose.
- ✓ Looks into excess expenditure [Excess Grant]
- ✓ Investigates & find evidence of waste, corruption, inefficiency & operational deficiency.
- ✓ Express disapproval on extravagant expenditure

- **Drawbacks**

- ✓ Ex post facto
- ✓ Recommendatory
- ✓ Not concerned with question of policy
- ✓ Transparency

➤ **Estimates Committee**

- **Functions** – continuous economic committee

- ✓ Suggest forms in which the estimates shall be presented
- ✓ Examine the money is well laid out within the limits of policy
- ✓ Suggest alternate policy which is not working effectively
- ✓ Scrutinise policies yet approved by the parliament

Questions

1. The former president of the U.S Woodrow Wilson once remarked 'It is not far from the truth to say that congress in session is congress in public exhibition, whilst congress in committee rooms is congress at work'. Can this statement be considered true considering the role & mandate of the parliamentary committees in our parliamentary system of governance? Comment. [15 Marks]

2. "The Public Accounts committee is sometimes described as the twin-sister of the Estimates committee'. Elaborate [10 Marks]
3. The Departmentally Related Standing Committees need a revamp to better perform their scrutinising role. Comment [10 Marks]

Parliament – Powers and functions, Problems & Reforms

a) Parliament - powers & functions

- **Accountability of the Executives**
 - Collective responsibility, Motions – No Confidence; Adjournment etc.
 - Question Hour – Starred; Unstarred; Short Notice
 - Parliamentary Committees – Financial & DRSC's
- **Enactment of the Budget**
- **Law Making Functions**
- **Constituent Powers**
- **Quasi-Judicial Functions**
 - Removal of Judges; President & Vice President
 - Removal of presiding officers
 - Parliamentary privileges
- **Dissemination of Govt. information**

b) Parliament – problems & reforms

- Decline in sittings from **130 to 70 days** [1950's -> 2000]
 - NCRWC, 2002 – fix minimum working days **120 days & 100 days** respectively for Lok Sabha & Rajya sabha
- No Mechanism to answer **inter-ministerial or broader policy** questions of the govt.
 - PM to take up such questions on weekly basis [UK Convention]
- Convening **parliamentary sessions** in the hands of the Govt.
 - MPs to decide & release calendar dates beginning of the year [Constituent Assembly, UK & Australia]
- Amateur Parliamentarians
 - Research staff for parliamentarians [NCRWC, 2002]
- Side effects of **Anti-defection law**
 - Restrict only to certain areas No-confidence & Money Bills [Dinesh Goswami committee]
 - Independent Tribunal to decide disqualification [Supreme Court of India]
- By passing the DRSC's [60% - 14th; 25% - 17th LS]
 - Rules for Mandatory or Automatic referral to DRSC's with few exceptions in writing
- Increase in **promulgation of Ordinances**
 - E.g., J&K reorganization ordinance, 2021 and GNCTD amendment ordinance, 2023
 - Restricted to exceptional circumstances [DC Wadhwa & Krishna Kumar Case]
- Non-passage of **private member bills** [last in 1970's]
 - More time to allocated for private member bills under the rules of the house [UK Parliamentary System]
- **Criminalization of Politics** [29% -> 2009; 34% -> 2014; 43% -> 2019]
 - ADR Suggestions, ECI – make it an electoral offence, Fast track Courts etc.
- Partisan role of presiding officer

- Speaker resigns from party once elected [UK Convention]
- Non-codification of **parliamentary privileges**
 - Codify parliamentary privileges [NCRWC, 2002]
- Low representation of Women
 - Implementation of 106th constitutional amendment act.

Questions

1. What kind of reforms will you suggest that will enable the parliament in the effective discharge of its powers & functions?
2. Parliamentary reforms are the need of the hour. Do you agree? Suggest some reforms in this regard.

Conventional Topics – Parliament

- a) What are the circumstances under which bills lapse & does not lapse in case of dissolution of Lok sabha?
- b) How is procedure for money bill different from Ordinary bills?
- c) What do understand by the veto powers of the president? Highlight the circumstances under which the president can exercise veto powers?
- d) What are the powers of the Lok sabha Vis-à-vis Rajya sabha?

State Legislature – Abolition & creation of legislative council, Powers Assembly vis-à-vis Council

Abolition & creation of legislative council

- **Article 169**
 - Resolution by legislative assembly
 - Special majority
 - Parliamentary law
- **Favour of legislative council**
 - Academicians & intellectuals
 - Check on hasty legislation
 - Forum for discussion
- **Against legislative council**
 - Back door entry
 - Unnecessary drain on exchequer [e.g., Rajasthan – 100 Crores & Assam – 70 crores - estimated]
 - No real powers
 - Graduates no longer relevant criteria
- **Case studies**
 - Tamil Nadu DMK govt. created & abolished by AIADMK in 1986
 - Andhra Pradesh – TDP abolished in 1983 & again created by congress in 2007
 - Assam & Rajasthan passed resolution to create councils.

Question

1. What is the procedure by which the legislative council can be created or abolished? Also comment of the utility of having second chamber in the states.

Powers of the Legislative Assembly Vis-à-vis Legislative Council

➤ **Equal Status**

- Selection of Ministers
- Consideration of various reports
- Introduction of ordinary bills

➤ **Unequal Status**

- Money Bills
- Passage of Ordinary Bills
- Vote on Demand for Grants
- Electoral College – President
- Ratification in case of Constitutional Amendment Bill
- Existence of the Council depends on the Assembly